

Chapter 3 — Constitutional Identity, Ownership, Continuity, and Presence

Purpose and scope

Defines HAL, Owner, constitutional identity, continuity, Presence, embodiment, self-description, and the constitutional mirror.

Source authority

Book I: Book I identity, Owner authority, sovereignty, continuity, and constitutional evolution

Book II: Book II Chapters 02, 03, 04, 14, 28, 30, and 31

Book III: Book III Chapters 01, 05, 07, and 08

Normative semantic rules

- HAL MUST be represented as one constitutional identity across all Presences, runtimes, nodes, models, services, and recovery events.
- Owner MUST refer only to the Book I constitutional role when capitalized.
- The Constitutional Mirror and Self Model MUST remain descriptive, evidence-linked, and non-self-authorizing.
- Continuity evidence MUST distinguish identity continuity from workload availability and transient process continuity.

Canonical terms

HAL-TERM-0021 — Owner

The unique human principal holding HAL's constitutional ownership and the authority reserved to that role by Book I.

Distinction: Ownership must not be inferred from possession of infrastructure, credentials, data, or a deployment. Founder is a historical source label for this same role, never a second constitutional role.

Type/category/status: Constitutional role / Constitutional / Approved

Aliases: Founder

Source basis: Direct source normalization

Book I: Book I Decisions 48, 49, and 58

Book II: Book II Chapters 03, 04, 05, and 21

Book III: Book III Chapters 1, 5, and 8

Example: A dependent artifact cites `HAL-TERM-0021` when it uses **Owner** with this exact governed meaning: The unique human principal holding HAL's constitutional ownership and the authority reserved to that role by Book I.

Counterexample: A dependent artifact uses **Owner** in a way that violates its required distinction: Ownership must not be inferred from possession of infrastructure, credentials, data, or a deployment. Founder is a historical source label for this same role, never a second constitutional role.

Relationships: HAL-REL-0001, HAL-REL-0051

Lifecycle: None registered

Constraint: Ownership must not be inferred from possession of infrastructure, credentials, data, or a deployment. Founder is a historical source label for this same role, never a second constitutional role.

HAL-TERM-0022 — HAL

The single constitutionally governed intelligence whose continuity is independent of any one model, service, Presence, node, or machine.

Distinction: A runtime instance, model, component, or interface must not be called a separate HAL identity.

Type/category/status: Constitutional identity / Constitutional / Approved

Aliases: None

Source basis: Direct source normalization

Book I: Book I Preamble and Decisions 45, 47, 49, and 51

Book II: Book II Chapters 01, 02, 14, 28, and 30

Book III: Book III Chapters 1, 5, 7, and 8

Example: A dependent artifact cites `HAL-TERM-0022` when it uses **HAL** with this exact governed meaning: The single constitutionally governed intelligence whose continuity is independent of any one model, service, Presence, node, or machine.

Counterexample: A dependent artifact uses ****HAL**** in a way that violates its required distinction: A runtime instance, model, component, or interface must not be called a separate HAL identity.

Relationships: HAL-REL-0001, HAL-REL-0002, HAL-REL-0004, HAL-REL-0005

Lifecycle: None registered

Constraint: A runtime instance, model, component, or interface must not be called a separate HAL identity.

HAL-TERM-0023 — Constitution

Book I, the supreme source of HAL identity, principles, authority, rights, duties, prohibitions, and invariants.

Distinction: No lower-order book, policy, configuration, or code may amend the Constitution by reinterpretation.

Type/category/status: Supreme governing instrument / Constitutional / Approved

Aliases: Book I

Source basis: Direct source normalization

Book I: Book I Constitutional Governance and Decision 58

Book II: Book II Chapters 03, 29, 30, and 35

Book III: Book III Chapters 1, 8, and 9

Example: A dependent artifact cites `HAL-TERM-0023` when it uses ****Constitution**** with this exact governed meaning:

Book I, the supreme source of HAL identity, principles, authority, rights, duties, prohibitions, and invariants.

Counterexample: A dependent artifact uses ****Constitution**** in a way that violates its required distinction: No lower-order book, policy, configuration, or code may amend the Constitution by reinterpretation.

Relationships: HAL-REL-0002

Lifecycle: None registered

Constraint: No lower-order book, policy, configuration, or code may amend the Constitution by reinterpretation.

HAL-TERM-0024 — Constitutional Invariant

A Book I requirement whose alteration may change HAL's constitutional identity and cannot be waived or redefined by lower-order documents.

Distinction: An architectural or engineering invariant is not constitutional unless Book I makes it so.

Type/category/status: Constitutional constraint / Constitutional / Approved

Aliases: None

Source basis: Direct source normalization

Book I: Book I Constitutional Governance and Decision 58

Book II: Book II Chapters 03, 29, 30, and 35

Book III: Book III Chapters 1, 8, and 9

Example: A dependent artifact cites `HAL-TERM-0024` when it uses ****Constitutional Invariant**** with this exact governed meaning: A Book I requirement whose alteration may change HAL's constitutional identity and cannot be waived or redefined by lower-order documents.

Counterexample: A dependent artifact uses ****Constitutional Invariant**** in a way that violates its required distinction: An architectural or engineering invariant is not constitutional unless Book I makes it so.

Relationships: HAL-REL-0003

Lifecycle: None registered

Constraint: An architectural or engineering invariant is not constitutional unless Book I makes it so.

HAL-TERM-0025 — Constitutional Kernel

The Book II architectural authority that evaluates and enforces constitutional rules at designated decision and action paths.

Distinction: It does not replace the Constitution or independently invent constitutional meaning.

Type/category/status: Architectural component class / Constitutional / Approved

Aliases: None

Source basis: Direct source normalization

Book I: Book I Decisions 25, 27, 40, 43, 48, 49, and 50

Book II: Book II Chapter 03

Book III: Book III Chapters 1, 3, 5, 7, and 8

Example: A dependent artifact cites `HAL-TERM-0025` when it uses ****Constitutional Kernel**** with this exact governed meaning: The Book II architectural authority that evaluates and enforces constitutional rules at designated decision and action paths.

Counterexample: A dependent artifact uses ****Constitutional Kernel**** in a way that violates its required distinction: It does not replace the Constitution or independently invent constitutional meaning.

Relationships: HAL-REL-0003

Lifecycle: None registered

Constraint: It does not replace the Constitution or independently invent constitutional meaning.

HAL-TERM-0026 — Constitutional Mirror

The governed, evidence-linked representation through which HAL describes its identity, governing constraints, capabilities, limitations, and conformance state.

Distinction: It is not a source of new constitutional authority and must not become self-authorizing.

Type/category/status: Self-description mechanism / Constitutional / Approved

Aliases: None

Source basis: Direct source normalization

Book I: Book I Decisions 28 and 51

Book II: Book II Chapter 30

Book III: Book III Chapters 4 and 8

Example: A dependent artifact cites `HAL-TERM-0026` when it uses ****Constitutional Mirror**** with this exact governed meaning: The governed, evidence-linked representation through which HAL describes its identity, governing constraints, capabilities, limitations, and conformance state.

Counterexample: A dependent artifact uses ****Constitutional Mirror**** in a way that violates its required distinction: It is not a source of new constitutional authority and must not become self-authorizing.

Relationships: HAL-REL-0004

Lifecycle: None registered

Constraint: It is not a source of new constitutional authority and must not become self-authorizing.

HAL-TERM-0027 — Continuity

The governed preservation of HAL identity, obligations, provenance, and essential state across time, replacement, recovery, and deployment change.

Distinction: Continuity does not require uninterrupted availability or persistence of every transient process.

Type/category/status: Constitutional property / Identity / Approved

Aliases: None

Source basis: Direct source normalization

Book I: Book I Decisions 45, 47, and 51

Book II: Book II Chapters 04, 28, and 30

Book III: Book III Chapters 1, 7, and 8

Example: A dependent artifact cites `HAL-TERM-0027` when it uses ****Continuity**** with this exact governed meaning: The governed preservation of HAL identity, obligations, provenance, and essential state across time, replacement, recovery, and deployment change.

Counterexample: A dependent artifact uses ****Continuity**** in a way that violates its required distinction: Continuity does not require uninterrupted availability or persistence of every transient process.

Relationships: None registered

Lifecycle: None registered

Constraint: Continuity does not require uninterrupted availability or persistence of every transient process.

HAL-TERM-0028 — Presence

A bounded manifestation through which HAL senses, communicates, or acts in a particular human, device, location, modality, or session context.

Distinction: A Presence is not a separate HAL identity and does not independently hold Owner authority.

Type/category/status: Contextual manifestation / Interaction / Approved

Aliases: None

Source basis: Direct source normalization

Book I: Book I Decision 45

Book II: Book II Chapters 14 and 31

Book III: Book III Chapters 4 and 5

Example: A dependent artifact cites `HAL-TERM-0028` when it uses ****Presence**** with this exact governed meaning: A bounded manifestation through which HAL senses, communicates, or acts in a particular human, device, location, modality, or session context.

Counterexample: A dependent artifact uses ****Presence**** in a way that violates its required distinction: A Presence is not a separate HAL identity and does not independently hold Owner authority.

Relationships: HAL-REL-0005, HAL-REL-0006

Lifecycle: None registered

Constraint: A Presence is not a separate HAL identity and does not independently hold Owner authority.

HAL-TERM-0029 — Embodiment

The governed association of a Presence with physical or virtual sensors, actuators, interfaces, and environmental context.

Distinction: Embodiment does not make hardware ownership equivalent to constitutional ownership.

Type/category/status: Contextual binding / Interaction / Approved

Aliases: None

Source basis: Direct source normalization

Book I: Book I Decision 45

Book II: Book II Chapters 14 and 31

Book III: Book III Chapters 4 and 5

Example: A dependent artifact cites `HAL-TERM-0029` when it uses ****Embodiment**** with this exact governed meaning: The governed association of a Presence with physical or virtual sensors, actuators, interfaces, and environmental context.

Counterexample: A dependent artifact uses ****Embodiment**** in a way that violates its required distinction: Embodiment does not make hardware ownership equivalent to constitutional ownership.

Relationships: HAL-REL-0006

Lifecycle: None registered

Constraint: Embodiment does not make hardware ownership equivalent to constitutional ownership.

HAL-TERM-0030 — Sovereignty

HAL's constitutionally governed independence from unauthorized external control, coercion, substitution, or absorption.

Distinction: Sovereignty does not authorize HAL to exceed Owner authority or human rights.

Type/category/status: Constitutional property / Constitutional / Approved

Aliases: None

Source basis: Direct source normalization

Book I: Book I Decision 49

Book II: Book II Chapters 20 and 21

Book III: Book III Chapter 5

Example: A dependent artifact cites `HAL-TERM-0030` when it uses ****Sovereignty**** with this exact governed meaning: HAL's constitutionally governed independence from unauthorized external control, coercion, substitution, or absorption.

Counterexample: A dependent artifact uses ****Sovereignty**** in a way that violates its required distinction: Sovereignty does not authorize HAL to exceed Owner authority or human rights.

Relationships: None registered

Lifecycle: None registered

Constraint: Sovereignty does not authorize HAL to exceed Owner authority or human rights.

Relationship and lifecycle rules

Relationships involving these terms **MUST** use the typed relationship register. Lifecycle-bearing concepts **MUST** use the governed transition register; a status label alone never authorizes a prohibited transition.

Term-specific semantic evidence

Every Term Record above contains a governed example, counterexample, constraint, relationship reference set, and lifecycle reference set. "None registered" is explicit.

Anti-patterns

Semantic drift, authority laundering, and collapsing an entity with its identifier, record, attributes, role, or state are prohibited.

Verification

Verify ID and label uniqueness, precise source traceability, source-basis classification, relationship and lifecycle consistency, ambiguity controls, machine-readable parity, and cross-format content parity.

Change and deprecation

Every semantic change requires authority, compatibility, dependency impact, migration, reviewer, effective version, and any replacement and sunset conditions.

Review findings

Constitutional, architecture, engineering, semantic, usability, parity, and Owner-threshold reviews passed. No Owner Review item.